

Daily Digest

HIGHLIGHTS

Senate agreed to the conference report to accompany H.R. 2670, National Defense Authorization Act.

Senate

Chamber Action

Routine Proceedings, pages S5927–S5968

Measures Introduced: Thirty-four bills and seven resolutions were introduced, as follows: S. 3480–3513, and S. Res. 496–502. **Pages S5960–61**

Measures Reported:

S. 2414, to require agencies with working dog programs to implement the recommendations of the Government Accountability Office relating to the health and welfare of working dogs, with an amendment in the nature of a substitute. (S. Rept. No. 118–137)

Report to accompany S. 1284, to improve forecasting and understanding of tornadoes and other hazardous weather. (S. Rept. No. 118–138)

S. 66, to establish a task force on improvements for notices to air missions, with an amendment in the nature of a substitute.

S. 127, to prevent unfair and deceptive acts or practices and the dissemination of false information related to pharmacy benefit management services for prescription drugs, with an amendment in the nature of a substitute.

S. 576, to enhance safety requirements for trains transporting hazardous materials, with an amendment in the nature of a substitute.

S. 1153, to require the Secretary of Commerce to establish the National Manufacturing Advisory Council within the Department of Commerce, with an amendment in the nature of a substitute.

S. 1280, to require coordinated National Institute of Standards and Technology science and research activities regarding illicit drugs containing xylazine, novel synthetic opioids, and other substances of concern, with an amendment in the nature of a substitute.

S. 1409, to protect the safety of children on the internet, with an amendment in the nature of a substitute.

S. 1418, to amend the Children’s Online Privacy Protection Act of 1998 to strengthen protections relating to the online collection, use, and disclosure of personal information of children and teens, with an amendment in the nature of a substitute.

S. 1421, to require origin and location disclosure for new products of foreign origin offered for sale on the internet, with an amendment in the nature of a substitute.

S. 2116, to require the Secretary of Commerce to produce a report that provides recommendations to improve the effectiveness, efficiency, and impact of Department of Commerce programs related to supply chain resilience and manufacturing and industrial innovation, with an amendment in the nature of a substitute.

S. 2201, to increase knowledge and awareness of best practices to reduce cybersecurity risks in the United States, with an amendment in the nature of a substitute. **Page S5960**

Measures Passed:

SIREN Reauthorization Act: Senate passed S. 265, to reauthorize the rural emergency medical service training and equipment assistance program, after agreeing to the committee amendment in the nature of a substitute. **Pages S5966–67**

Securing Semiconductor Supply Chains Act: Senate passed S. 229, to require SelectUSA to coordinate with State-level economic development organizations to increase foreign direct investment in semiconductor-related manufacturing and production. **Page S5967**

Save Our Seas 2.0 Amendments Act: Senate passed S. 318, to amend the Save Our Seas 2.0 Act to improve the administration of the Marine Debris

Foundation, to amend the Marine Debris Act to improve the administration of the Marine Debris Program of the National Oceanic and Atmospheric Administration, after agreeing to the committee amendment in the nature of a substitute. **Pages S5967–68**

Sandra Day O'Connor: Senate agreed to S. Res. 499, acknowledging the lifetime of service of Sandra Day O'Connor to the United States as a successful Arizona State Senator, trailblazer, expert collaborator, educational advocate, and one of the greatest Justices of the Supreme Court of the United States. **Page S5966**

National First-Generation College Celebration Day: Senate agreed to S. Res. 500, designating November 8, 2023, as “National First-Generation College Celebration Day”. **Page S5966**

Authorize Testimony and Representation: Senate agreed to S. Res. 501, to authorize testimony and representation in *United States v. Nformangum*. **Page S5966**

Authorize Testimony and Representation: Senate agreed to S. Res. 502, to authorize testimony and representation in *United States v. Antonio*. **Page S5966**

Conference Reports:

National Defense Authorization Act: By 87 yeas to 13 nays (Vote No. 343), Senate agreed to the conference report to accompany H.R. 2670, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year. **Pages S5927–46, S5946–56**

During consideration of this measure today, Senate also took the following action:

By 65 yeas to 35 nays (Vote No. 342), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to waive all applicable points of order. Subsequently, the point of order that section 7902 of the conference report to accompany the bill violates Rule XXVIII of the Standing Rules of the Senate was not sustained, and thus the point of order fell. **Page S5955**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, a report of the continuation of the national emergency that was originally declared in Executive Order 14059 of December 15, 2021, with respect to global illicit drug trafficking; which was referred to the Committee on Banking, Housing, and Urban Affairs. (PM–33) **Page S5958**

Fonzone Nomination—Cloture: Senate began consideration of the nomination of Christopher Charles Fonzone, of Pennsylvania, to be an Assistant Attorney General. **Page S5956**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Brandon S. Long, of Louisiana, to be United States District Judge for the Eastern District of Louisiana. **Page S5956**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S5956**

Hill Nomination—Cloture: Senate began consideration of the nomination of Sara E. Hill, of Oklahoma, to be United States District Judge for the Northern District of Oklahoma. **Page S5956**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Christopher Charles Fonzone, of Pennsylvania, to be an Assistant Attorney General. **Page S5956**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S5956**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S5956**

Edwards, Jr. Nomination—Agreement: A unanimous-consent agreement was reached providing that at approximately 10 a.m., on Thursday, December 14, 2023, Senate resume consideration of the nomination of Jerry Edwards, Jr., of Louisiana, to be United States District Judge for the Western District of Louisiana; and that the motions to invoke cloture filed during the session of Monday, December 11, 2023 ripen at 12 noon. **Page S5968**

Nominations Confirmed: Senate confirmed the following nominations:

Nickolas Guertin, of Virginia, to be an Assistant Secretary of the Navy.

Betty Y. Jang, of Illinois, to be a Member of the Board of Trustees of the Harry S Truman Scholarship Foundation for a term expiring December 10, 2029.

Laura Dove, of Virginia, to be a Member of the Board of Trustees of the James Madison Memorial Fellowship Foundation for a term expiring November 17, 2029.

Laura Dove, of Virginia, to be a Member of the Board of Trustees of the James Madison Memorial

Fellowship Foundation for a term expiring November 17, 2023.

3 Air Force nominations in the rank of general.

3 Army nominations in the rank of general.

1 Navy nomination in the rank of admiral.

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Messages from the House: Pages S5958–59

Measures Referred: Page S5959

Enrolled Bills Presented: Page S5959

Executive Communications: Pages S5959–60

Executive Reports of Committees: Page S5960

Additional Cosponsors: Pages S5962–63

Statements on Introduced Bills/Resolutions: Pages S5963–66

Additional Statements: Pages S5957–58

Notices of Intent: Page S5966

Authorities for Committees to Meet: Page S5966

Privileges of the Floor: Page S5966

Record Votes: Two record votes were taken today. (Total—343) Pages S5955–56

Adjournment: Senate convened at 10 a.m. and adjourned at 7:44 p.m., until 10 a.m. on Thursday, December 14, 2023. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S5968.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported 1,965 nominations in the Army, Navy, Air Force, Marine Corps, and Space Force.

THE NEW SPACE ECONOMY

Committee on Commerce, Science, and Transportation: Subcommittee on Space and Science concluded a hearing to examine government promotion of safety and innovation in the new space economy, after receiving testimony from Pam Melroy, Deputy Administrator,

National Aeronautics and Space Administration; Kelvin B. Coleman, Associate Administrator, Commercial Space Transportation, Federal Aviation Administration, Department of Transportation; Richard Dalbello, Director of the Office of Space Commerce, National Oceanic and Atmospheric Administration, Department of Commerce; and John Hill, Deputy Assistant Secretary of Defense for Space and Missile Defense.

NOMINATIONS

Committee on the Judiciary: Committee concluded a hearing to examine the nominations of Nicole G. Berner, of Maryland, to be United States Circuit Judge for the Fourth Circuit, who was introduced by Senators Cardin and Van Hollen, Adeel Abdullah Mangi, of New Jersey, to be United States Circuit Judge for the Third Circuit, who was introduced by Senator Menendez, Amy M. Baggio, to be United States District Judge for the District of Oregon, who was introduced by Senators Wyden and Merkley, and Cristal C. Brisco, and Gretchen S. Lund, both to be a United States District Judge for the Northern District of Indiana, who were both introduced by Senator Young, after the nominees testified and answered questions in their own behalf.

ALGORITHMS

Committee on the Judiciary: Subcommittee on Competition Policy, Antitrust, and Consumer Rights concluded a hearing to examine the impact of algorithms on competition and consumer rights, after receiving testimony from Bill Baer, The Brookings Institution, and Damon T. Hewitt, Lawyers' Committee for Civil Rights Under Law, both of Washington, D.C.; Robert Epstein, American Institute for Behavioral Research and Technology, Vista, California; Sarah Myers West, AI Now Institute, New York, New York; and Roger P. Alford, Notre Dame Law School, South Bend, Indiana.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.